IPA
AN FORAS RIARACHÁIN
INSTITUTE OF PUBLIC
ADMINISTRATION

Certificate in Local Government Studies
(Accredited by NUI)

LESSON 9
Environmental Protection

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LEARNING OBJECTIVES:

By the end of this lesson you should:

- Understand the role of local government in a variety of fields around environmental protection, such as waste management, litter management, and water and air quality.
- Appreciate links between these areas of work and the work of local authorities in other areas, such as planning and climate change.
- Understand the role of local government in the provision of the fire service, civil defence and preparing local emergency plans.

9.0 INTRODUCTION AND OVERVIEW

Our environment is all around us and impacts on our lives, well-being and our health – the air we breathe, the water we drink, our rivers, forests and landscapes, animal species and habitats, pollution of the planet, increasing noise levels, etc. While citizens proclaim their concern about the environment, the extent to which such concern is matched by responsible actions and acceptance of environmental requirements is questionable. This ambiguity translates into limited political action. Nobody wants landfills or incinerators especially if they are to be located near them but a significant majority still pursue unsustainable practices. Growing awareness of climate change in Ireland and across the globe is influencing public attitudes, with a realisation that we cannot continue on our current pathway.

In terms of public environmental services and policy, they are frequently characterised as end-of-pipe solutions. As consumers we generate the waste and as public bodies, we regulate how that waste is disposed. In recent years public policy has moved to try and reduce the volume of waste *produced* to ease pressure on the end-of-pipe problems such as the need for waste to energy plants, landfills, waste export, littering and so on. But market pressure is intense such as the growth in what is described as 'fast fashion'. Global climate change has become a dire reality with urgent consequences confronting communities and the planet.

The 1878 Public Health (Ireland) Act and subsequent Public Health/Sanitary Services Acts dealt with waste collection and disposal discharges to waterways and sewers, nuisances, street cleaning, offensive trades, burial grounds and so on. From the 1970s, influenced by Ireland's membership of the European Union, a completely new era of environmental legislation commenced that greatly enlarged and enhanced the role of the local authority in areas such as waste management, litter, water pollution, and air and noise pollution. Environmental services also include local government work in areas such as derelict sites, civil defence, natural waters, group water schemes and the fire service. These areas are covered in this Lesson.

Given the increased emphasis given to local government's role in climate change in recent years, a separate dedicated Lesson addresses the issue of sustainable development and climate change (see Lesson 8). But students should note that there are important linkages between these two areas of work. In particular, an understanding of sustainable development is important as a principle underpinning the area of environmental protection. Sustainability is often understood as ensuring that the present needs of people are addressed in such a way as to protect the interests of future generations.

Economic development and greater environmental protection are not mutually exclusive. For many decades there has been a close correlation between economic growth, greater use of carbon to fuel that growth, climate change and environmental degradation. What has to be achieved, and what local authorities have to use their functions to achieve, is a balance between the two, one that is sustainable. Local authorities are entrusted with a leadership role in delivering changes.

Local authorities also strongly influence environmental protection through their planning functions. The Supreme Court once declared that the Development Plan was an "environment contract" between the local authority and the community. The Development Plan can determine the land use strategies, the protection of amenity areas, tree preservation orders and other environmental protection measures. The manner in which local authorities implement their sanitary, housing, amenity, roads and other functions also impacts on the local environment.

The need for local authority functions to be integrated should be borne in mind when you are studying this lesson. You will know from your own experience that, at times, environmental problems arise as a result of decisions taken by different service departments, e.g. major roads projects, waste, planning decisions, etc. The local authority must consistently try to achieve a reasonable balance between environmental protection and the provision of essential services to the community as a whole.

It is important to recognise that although local authorities have a key environmental protection role, it is very much a shared responsibility. Other agencies, such as the Fishery Boards, Heritage Services, Parks and Wildlife Services, Department of Agriculture and Food, Department of Communication, Energy & Natural Resources, TII, OPW, Uisce Éireann Environmental Protection Agency, etc., have a statutory role to play in environmental protection. There is also a significant Non-Governmental Organisations (NGO) sector, with organisations such as An Taisce and Earthwatch actively engaged in environmental protection and improvement. It is equally true that the quality of our environment is very dependent on the behaviour of individuals within society itself, i.e. it is a *shared responsibility* that requires a partnership approach.

Achieving national environment policy objectives will challenge public and political attitudes, culture, procedures and practices. Getting it right is of critical importance to the quality of life for present and future generations. When studying this lesson, you should keep in mind the "big picture" and the fact that there is a great deal more to environment policy than the legislative framework available to local authorities.

9.0.1 State of the Environment

The Environmental Protection Agency (EPA) produces state of the environment reports on a four-year cycle, with previous reports produced in 2024, 2020, 2016, 2012, 2008, 2004, 2000, and 1996. The EPA also has an online environmental data resource, Ireland's Environment, which provides a current assessment of the state of the Irish environment using a selection of key indicators.

The overall conclusion of recent reports has been that while Ireland's environment remains in a relatively good condition, there are a number of key challenges. Key priority challenges for the environment are highlighted:

- transitioning to a low-carbon society, reducing greenhouse emissions and preparing for the effects of climate change (see Lesson 8 on climate change)
- meeting waste reduction and recycling targets
- deteriorating water quality levels
- the erosion of ecosystems and biodiversity
- putting the environment at the centre of our decision making
- implementing environmental legislation and solutions.

Local authorities are clearly central to the effort in addressing many of these challenges. Subsequent sections in this Lesson deal with areas such as waste and litter, with water and air quality, as well as the implementation of environmental legislation. In addition to these areas, it should also be emphasised that local authorities have a broader environmental mandate in terms of promoting biodiversity and the protection of nature in their areas. One manifestation of this broader role for local government is envisaged in the National Biodiversity Plan adopted in 2023. For example, biodiversity officers have been appointed by local authorities across the country, and have played a role in developing local action plans, supporting local conservation projects, local community-based surveys of ecosystems, and promoting biodiversity initiatives, along with raising awareness within local authorities and integrating biodiversity and conservation considerations into other areas of local government activity.

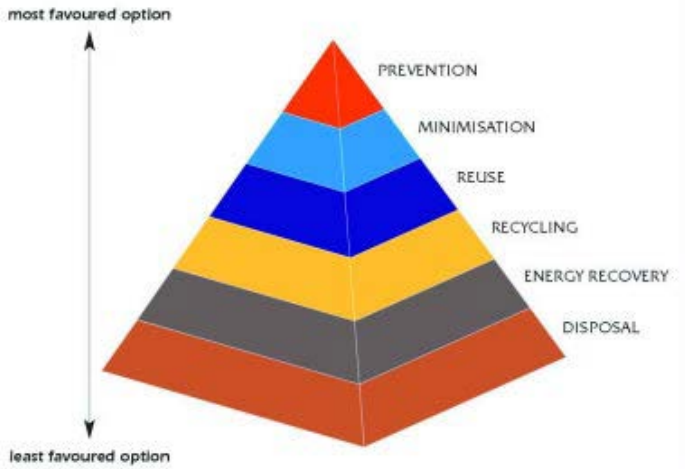
9.1 WASTE MANAGEMENT

In 1995 there was 1.42 million tonnes of waste produced in Ireland with a population of 3.58 million people or around 0.4 tonnes per person. By 2021, Ireland generated 3.17 million tonnes of municipal waste with a population of 5.03 million (equal to 0.63 tonnes per person per annum) and recycled 41% of this. While part of this increase can be ascribed to an increasing population, the amount of waste produced per person in Ireland also shows an underlying upward trend notwithstanding policy attempts at national and international level. Students would be forgiven for wondering about this but as Ireland's economy develops and with improved standards of living, it is typically the case that wealthier people produce more waste. In addition there is the parallel development of a throw away culture – a human society strongly influenced by consumerism.

Like so many local government functions, waste management cannot be considered in isolation. Many of the activities of local authorities have implications in relation to waste management – road construction, disposal of sewage sludge, street sweeping, office waste, physical planning function and so on. There is a vast array of legislation, regulations and directives relating to waste. You should familiarise yourself with the way in which waste management policy has developed over the years and the various initiatives and measures which have been introduced.

It is important to note that both Irish policy and Irish legislation on waste is based on EU legislation adopted in this area. This includes general Directives on waste such as the Waste Framework Directive, Directives on waste facilities such as the Landfill Directive and the Waste Incineration Directive, and EU Directives on specific waste streams such as packaging waste, waste electrical and electronic equipment (WEEE), batteries, end of life vehicles, mining waste, etc. Much of the policy and legislative framework outlined in the following section was adopted to give effect to commitments in EU legislation entered into by Irish representatives at EU level.

Figure 9.1 Waste Hierarchy Pyramid



Source: Department of the Environment

Both EU policy and national policy is based on the concept of a 'waste hierarchy'. According to this concept, initiatives should be geared towards incentivising citizens and organisations to prevent waste being generated in the first place, and thereafter to minimising the volume of waste, to promote reuse, then recycling, then energy recovery, and then final disposal. Preference should be given towards the 'top' of the hierarchy so to speak – see diagram above.

9.1.1 Government Policy

In 1994, a National Recycling Strategy, 'Recycling for Ireland' identified a minimum target recovery rate of 30% for packaging waste, and for expanding the network of collection points for recyclable materials across Ireland. As well as identifying a role for local government, the principle of *producer responsibility* was provided for, so that producers should take responsibility for the waste generated by their products placed on the marketplace.

National waste management policy was set further developed through the publication of 'Waste Management – Changing Our Ways', published in 1998. This stressed that there was an urgent need to modernise waste-management practice and secure the provision of environmentally efficient infrastructure. Proper waste management is a fundamental requirement for sustainable development and environmental protection. The thrust of Changing Our Ways was the need for a dramatic reduction *in reliance on landfill*, in favour of an integrated waste management approach which utilises a range of waste-treatment options to deliver ambitious recycling and recovery targets.

A further policy statement 'Preventing and Recycling Waste: Delivering Change' was published in March, 2002. In April 2004 the Government published a document entitled 'Taking Stock and Moving Forward', which was accompanied by the National Overview of Waste Management Plans, which focused on the status of each of the regional waste management plans. These documents gave details on progress on implementing Waste Management Plans, including data on recovery facilities such as bring banks, civic amenities, land filling and waste recovery rates, the status of thermal treatment capacity in Ireland and the existing landfill capacities in the different regions.

A revised Government waste management policy, 'A Resource Opportunity' was launched on in 2012. The new policy set out a number of actions, including that the development of Waste management plans will remain a function of local authorities. Measures included:

1. "A move away from landfill to its virtual elimination and replacement through prevention, reuse, recycling and recovery (waste to energy).
2. A Brown Bin Roll-Out diverting 'organic waste' such as food waste from landfill.
3. Keeping costs down for the consumer by introducing a strengthened regulatory regime.
4. New Service Standards to ensure that consumers receive higher customer service standards.
5. Placing responsibility on householders to prove they use an authorised waste collection service or manage their waste in an environmentally acceptable manner to combat illegal fly-tipping, littering and backyard burning of waste by a minority of households.
6. The establishment of a team of Waste Enforcement Officers for cases relating to serious criminal activity (e.g. diesel laundering) will be prioritised, in consultation with An Garda Síochána.

7. Significant reduction of planning regions from ten to three, allowing for greater efficiency in the delivery of planning while still recognizing geographical variations."

A Government policy framework, 'A Waste Action Plan for a Circular Economy' was adopted in 2024, building on an earlier framework adopted in 2020. As a general observation, one could say that these more recent policy frameworks place less emphasis on waste disposal, and more emphasis on changing producer and consumer practices and trends. These provided for a number of initiatives including:

- Recycling targets for waste collectors.
- Waste reduction targets for specific waste streams, such as food waste, packaging, etc.
- A significant reduction in single use plastics being placed on the market.
- Use of financial incentives to encourage reuse and recycling.
- Standardizing waste streams accepted at civic amenity sites.

The more recent frameworks have also placed considerable emphasis on enforcement, and set out an expanded role for local authorities in dealing with waste enforcement challenges, including the monitoring of household waste collection and disposal and enforcing producer responsibility initiatives. It also proposed developing an unauthorized sites action plan and fixed penalty notices for breaches of waste legislation.

9.1.2 Waste Management Act, 1996

The Waste Management Act, 1996 established a legislative framework on waste and gave a number of responsibilities to both local authorities and the EPA. The Act deals with:

- Waste management planning (Part II)
- Measures to reduce production and promote recovery of waste (Part III)
- Holding, collection and movement of waste (Part IV)
- Recovery and disposal of waste (Part V)
- General provisions regarding environmental protection (Part VI).

The main provisions of the Act, particularly as they apply to local authorities, are as follows:

(a) Statutory requirement to make a Waste Management Plan. All city and county councils are required to make waste management plans for their areas.
(b) Power of local authorities to promote waste recovery, prevention and minimisation measures.
(c) Statutory duty, with some minor exceptions, to collect or to arrange for collection of household waste (this applies for health reasons).
(d) Local authorities empowered to issue permits to waste collectors.
(e) Local authorities empowered to make bye-laws regarding the presentation of waste for collection.

(f) Statutory duty to provide, or arrange for provision of, facilities for recovery of household waste.
(g) Local authority landfills subject to licensing by the Environmental Protection Agency.
(h) Measures to prevent or limit environmental pollution caused by any person holding, recovering or disposing of waste. Section 55 notices may be served in order to prevent or limit environmental pollution caused or likely to be caused by the holding, recovery or disposal of waste.
(i) Direct action can be taken by a local authority to prevent or limit environmental pollution caused by waste.
(j) Amendment of the Local Government (Water Pollution) Acts, 1977 and 1990 (see below) allowing local authorities to require any person carrying out any agricultural activities to prepare a nutrient management plan.
(k) Revised powers for dealing with abandoned vehicles on land.

In addition to the range of measures outlined above, the Act requires the EPA to prepare a National Hazardous Waste Management Plan. Any public authority having a function in relation to hazardous waste will be required to have due regard to recommendations contained in the national plan. The European Communities (Shipments of Hazardous Waste Exclusively within Ireland) Regulations 2011 (S.I. No. 324 of 2011) were introduced, making Dublin City Council, National TFS Office, the sole authority for the administration of hazardous waste movements within Ireland.

9.1.3 Waste Management Planning

As mentioned above, local authorities were placed under a legal obligation under the Waste Management Act, 1996 to prepare Waste Management Plans for their area. Local authorities at this stage were encouraged to adopt a regional approach to waste management planning with a view to a more efficient provision of services and infrastructure. The making of a plan under this Act was initially a reserved function. Detailed public consultation procedures are required.

The majority of local authorities during this period committed themselves to the making of joint (regional) Waste Management Plans. During the late 1990s, there were difficulties in regard to the adoption of plans by a small number of authorities (primarily because of opposition at local level to proposals for new waste facilities such as landfills or incinerators) and this effectively meant that the other authorities involved were unable to achieve any progress in providing improved waste management infrastructure and services. Other local authorities claimed to have adopted a plan but did so subject to conditions or qualifications. Legal advice suggested that a regional Waste Management Plan had to be adopted by all of the local authorities concerned, or otherwise it could not be considered to have been a valid and adopted plan.

The Waste Management (Amendment) Act, 2001 was enacted primarily to provide a legal mechanism by which the waste management planning process could be brought to a conclusion. Under the Act, the Chief Executive was empowered to make a Waste

Management Plan if the members of the local authority defaulted in the process. The position was further amended with the enactment of the Protection of the Environment Act, 2003 which provided that the review, variation or replacement of a Waste Management Plan is an *executive function.*

Following from the policy document "Waste Management – Taking Stock and Moving Forward" (2004), Waste Management Plans were updated by local authorities. Waste Management Plans include annual targets and set out key actions that are to be delivered.

From 2015, the number of regional waste management plans was reduced from 10 plans to 3, based on the regional assembly areas, namely waste management plans for the Southern region, the Eastern and Midlands region, and the Connacht-Ulster region. Each plan was initially prepared by a Regional Waste Management Planning Office for each region based in a designated 'lead' local authority, and had to be adopted by each constituent local authority.

For the 2024-2030 period, a single national waste management plan has been adopted by local authorities to replace the previous plans. The plan was again prepared by Regional Waste Management Planning Offices and approved by individual chief executives. A headline objective of the plan to the aim for 0% in the total waste levels generated per person over the lifetime of the plan. A series of targets related to waste generation and specific waste streams, along with targets for reuse and recycling, infrastructure provision, and enforcement, are also identified.

9.1.4 Waste Management (Amendment) Act 2001

In addition to the change in waste management planning set out above, the Waste Management (Amendment) Act, 2001 also gave a legal basis to the levy on plastic shopping bags, the levy on landfill waste, the establishment of an Environment Fund to disburse levies collected on appropriate environmental projects, and an increase in the on the spot fine litter fines.

9.1.5 Protection of the Environment Act, 2003

This Act specifically states that waste presented for collection must bear evidence of payment of an appropriate charge, e.g. tag a bin, etc. The Act also inserted a new Section 75 into the 1996 Act, providing a new explicit power for local authorities to levy charges for waste services provided by them, or on their behalf. The making of a charge under this Section is an *executive function*. The extra power given to Chief Executive by this Section includes the power to overrule bye-laws adopted by the elected members in relation to charges if they are inadequate.

9.1.6 The Environment (Miscellaneous Provisions) Act, 2011

The Environment (Miscellaneous Provisions) Act, 2011 provides greater flexibility in the setting of the levy on plastic bags and the landfill levy. In relation to the landfill levy, the

challenging targets set for Ireland in the EU Landfill Directive (1999/31/EC) with regard to the diversion of biodegradable municipal waste from landfill were significant factors in this change.

9.1.7 Refuse Collection

Prior to the Waste Management Act 1996, the power to provide a domestic refuse collection service was contained in the Public Health (Ireland) Act, 1878. The provisions of the Waste Management Act 1996 placed a duty on city and county councils to collect or arrange for collection of household waste. However, the duty imposed does not apply where the local authority is satisfied that adequate arrangements for the disposal of the waste concerned can reasonably be made by the holder of the waste.

This duty, and the local authorities' power to charge for collection and to refuse to collect domestic waste where charges have not been paid, led to a number of court challenges. The matter was revisited in the Protection of the Environment Act, 2003, which explicitly provided that those undertaking waste collection services were not under obligation to collect waste where individuals had not paid their waste collection charges.

During the 1960s and 1970s local authorities generally expanded their refuse collection service. However, financial restrictions in the 1980s witnessed a reduction in the service provided by local authorities and, in many counties, private contractors began to operate. All local authorities have now withdrawn from the service, and private contractors provide a collection service on a fee-paying basis. By 2005 all waste collectors were required to have *pay-by-use* arrangements in place. They are required to offer either a volume- or weight-based service – the use of an annual flat-rate bin charge is abolished. One option is to charge a basic fee for collection with a top-up charge based on usage. This is aimed at encouraging recycling and reduction.

9.1.8 Producer Responsibility Initiatives

Various measures and initiatives have been introduced to regulate the production and disposal of waste to minimise the amount of waste produced, increasing waste recovery or recycling and reducing dependence on landfill.

Significant producer responsibility obligations have been introduced in relation to packaging waste, end-of-life vehicles (ELVs), farm plastic waste and waste electrical and electronic equipment (WEEE) in support of industry-led initiatives, and further such measures are under consideration.

9.1.9 Waste Licensing & Permits

Part V of the Waste Management Act, 1996 (as amended) deals with the requirement to hold waste licences. A person shall not dispose of or undertake the recovery of waste at a facility save under or in accordance with a waste licence. Landfills, transfer stations, hazardous waste disposal and other significant waste disposal and recovery activities

therefore require a waste licence. Applications for such licences are made to the EPA. The Waste Management (Licensing) Regulations, 2004 provided for the continued operation of the system of licensing by the EPA of waste recovery and disposal activities under Part V of the Waste Management Act 1996. The Regulations set out procedures for the making of waste licence applications, reviews of licences and consideration by the Agency of objections, including the holding of oral hearings. Any person can make a submission to the EPA in respect of a waste licence application. The Regulations also provide for the licensing of mobile plant used for the recovery and disposal of waste at more than one site. Decisions on waste licence applications are on the basis of BAT (Best Available Techniques). Energy efficiency is also considered in the making of decisions. There is a requirement for an applicant for a waste licence to be a "fit and proper person" as defined in the Protection of the Environment Act 2003 including being free from conviction under environmental legislation and possessing the technical and financial capacity to carry on the business to which the licence relates.

Not all waste facilities require a waste licence from the EPA. Under the Waste Management (Permit) Regulations, 1998, local authorities can grant waste permits in respect of specified minor waste disposal and recovery activities. The regulations also provide for the registration by local authorities for the storage of waste, in excess of specified amounts at its place of production. In addition to the issue of permits, the regulations provide for the registration by the EPA of certain waste recovery activities carried out by local authorities.

The Waste Management (Collection Permit) Regulations (as amended) provide for the permitting of the collection of waste on a commercial basis by a lead authority – since 2012 the National Waste Collection Permit Office based in Offaly County Council issues permits on behalf of local authorities. These regulations provide that all organisations involved in the business of collecting waste commercially must make an application for a collection permit. The permitting system has been introduced to achieve appropriate control as the issued permit is subject to conditions to achieve consistency between the operating standards and practices employed by collectors. A collection permit requires collection contractors to dispose of collected waste only to licensed facilities and to take steps to properly segregate either at source or at a facility. The Regulations set out procedures for application for a permit, the required public consultation and the considerations to be made by a local authority on subsequent submissions. When issued, a permit will allow waste to be collected in the functional area of the local authority or in the area of jurisdiction of the nominated authority.

9.1.10 Enforcement

Under Section 60 of the Waste Management Act, 1996 (as amended) the Minister may issue general policy directions to local authorities and the EPA. In May 2005 two policy directions in relation to action against illegal waste activity and movement of waste were issued by the Minister to encourage an intensification of action against illegal waste activity and enhance the response of local authorities and the EPA in ensuring the protection of the environment and human health and the prosecution of offenders and to

address the issue of inter-regional movement of waste. The timing of the direction coincided with a Court of Justice of the European Union judgement against Ireland in regard to illegal waste activity and the review of regional waste management plans.

The Minister specifically directed that particular consideration be given to certain sites:

- lands near to existing or planned residential development or educational facilities
- wetlands
- natural heritage areas, candidate special areas of conservation or special protection areas
- places of special interest such as high amenity areas.

In 2015, three Waste Enforcement Regional Lead Authorities (WERLAs) were established on a regional basis to coordinate and give a greater focus to the local government response to illegal dumping and unauthorised waste activities, each with designated 'lead' local authorities.

9.2 LITTER MANAGEMENT

Pollution involving litter is often cited as a serious issue affecting local areas, and having a detrimental effect on tourism and the attractiveness of an area.

9.2.1 Litter Pollution Act 1997

Some of the main provisions of the Litter Pollution Act 1997 include:

- Establishes that it is an offence to discard any substance or object to create litter in a public place.
- Places a duty on the owner of a vehicle to prevent the creation of litter from the vehicle. This applies to vehicles used to transport goods or materials.
- Requires the occupier of land to keep it free of litter if it is a public place or visible from a public place.
- Places a duty on local authorities to ensure that public roads are kept free of litter.
- Empowers a local authority to serve a notice to require the owner/occupier of any property to take steps to remedy littering.
- Places a duty on local authorities to prepare or jointly prepare a Litter Management Plan. The adoption of a Litter Management Plan is a reserved function and members are to be advised annually of the progress in achieving the objectives of the plan.
- Enables local authorities to serve notices on the occupier of specified classes of premises, e.g. cinemas, schools, sports grounds, etc. or on the promoters of events attracting large crowds, to prevent litter.
- Makes it an offence to exhibit advertisements on any structures or to deface

property without the prior written consent of the relevant owner/occupier. The placing of advertising on a mechanically propelled vehicle is also prohibited.
- Assigns local authorities with the power to make bye-laws to prohibit or regulate the distribution to the public of advertising material.
- Makes it an offence for a person in charge of a dog not to clean up when the dog fouls in certain specified public places.
- Extends the power to issue on-the-spot fines to the Gardaí.

9.2.2 Protection of the Environment Act, 2003

The Protection of the Environment Act, 2003 amends the Litter Pollution Act and strengthens the powers of Local Authorities in this area, including:

- Increased controls relating to the display of advertisements.
- Prohibition on placing advertising material on mechanically propelled vehicles in a public place other that by securing the material by some mechanical means to the body of the vehicle.
- Bye-laws may be made by Local Authorities for the purpose of preventing the creation of and controlling litter within its functional areas. Such bye-laws may:
  - Prohibit or regulate the distribution to the public of advertising material or specified categories of advertising material.
  - Regulate the movement, location, use and operation of mobile outlets.
  - Require occupiers of specified premises or classes of premises to take measures deemed necessary by the local authority to prevent or limit litter at or in the vicinity of such premises and provide for its removal.
  - Require the promoters or organisers of events at which large numbers of persons are likely to be present to take measures to prevent or limit the creation of litter at the events and provide for its removal.
  - Require the owners or managers of specified businesses or classes of business to wash, clean and brush down the public area outside of premises in which their business is carried on.
  - Regulate the provision and use of supermarket trolleys, including the imposition of duties on the owners or managers of retail outlets in cases where supermarket trolleys from these outlets are abandoned.
  - Increased penalties and fines.

Grants are allocated to local authorities by the Department of Communications, Climate Action and the Environment (DCCAE) for public education and awareness initiatives on litter under the 'Local Authority Grant Scheme – Anti-Litter / Anti-Graffiti Scheme'. These finance initiatives to raise public awareness and stimulate anti-litter activity at local level. This can include local clean-ups, primary/ secondary schools competitions, anti-litter videos, posters and other materials, information leaflets, local media campaigns, anti-litter exhibitions. Local authorities select suitable projects and decide on individual grant allocations – subject to specified criteria. The maximum grant allowed for any one project is 70% of the project costs – the balance must be met by local contributions.

9.2.3 Irish Business Against Litter (IBAL)

The DCCAE co-sponsor the Irish Business Against Litter National Litter League. IBAL's membership includes top Irish business and commercial enterprises. An annual comparison of League results shows significant improvement in litter levels throughout the country since the League was established in 2002. Check the IBAL website for its most recent reports where assessments on a county by county basis are available.

9.2.4 National Litter Pollution Monitoring System

The National Litter Pollution Monitoring System provides monitoring data on litter pollution countrywide and can track change year by year. The System draws on surveys carried out by local authorities—a minimum of between some 30 and 600 surveys per annum depending on population size. As per the National Litter Pollution Monitoring System results of 2022, the main constituent elements of litter pollution nationally were:

- cigarette related litter (52%)
- packaging items (19%),
- food related litter (10%)
- sweet related litter (8%)
- paper items (7%)
- deleterious litter (2%).

9.2.5 National Spring Clean Campaign and Tidy Towns

The National Spring Clean (NSC) is traditionally run annually throughout the month of April during which volunteers get out and clean up the countryside and cities. The campaign includes a central role for local authorities to co-ordinate and assist events at local level. The annual Tidy Towns competition has also been a very successful way of mobilising large numbers of local volunteers to address litter issues and contribute to environmental improvements in their local area.

9.3 WATER SUPPLY AND WASTE WATER TREATMENT

Since independence until the establishment of Uisce Éireann (initially known as Irish Water) in 2014, local authorities delivered water supply and waste water treatment services to households, businesses and other premises. A range of reasons were given for transferring waters services from local government to a national utility. These included addressing fragmentation, streamlining processes, some degree of independence from Exchequer funding and availing of economies of scale. It was also felt that a single national utility company could better secure investment and raise funds on private capital markets for water services and would be better equipped to roll out metering programmes, plan for major capital investment programmes (such as the water supply to the Dublin region) undertake repairs to pipes and address leakage and water conservation challenges, and (at the time it was established in 2014) implement the intended policy of introducing water

charges – although following strong political resistance water charges were subsequently repealed in 2017.

The loss of the water services function from local government has been profound. Local authorities have been involved in sanitary services since the 1878 Public Health (Ireland) Act which introduced a comprehensive code of sanitary law into Ireland including urban and rural sanitary districts which were managed by the respective local authorities in place at the time. Local communities relied on council staff and elected members to manage service delivery. A key feature was localness and hence accountability. A national organisation will struggle to maintain this kind of service as it attempts to scale up.

Local authorities and Uisce Éireann continued to provide water services under a Service Level Agreement (SLA) for a number of years after 2013 until 2023. During this time the local authorities managed the day-to-day operations and Uisce Éireann had responsibility for capital programmes. At the time of the transition, water services entailed the management and operation of 900 water treatment plants and a network of over 60,000 kilometres of pipeline, and 1,000 wastewater treatment plants and a wastewater collection network of some 25,000 kilometres of pipeline.

In 2022 it was estimated that there were some 3,200 local authority staff directly employed in water services which would equate to roughly 10% of local government staff numbers. The scale of the implementation challenge can be estimated as at that time there were only some 800 staff working in Uisce Éireann.

By the end of the transition period in 2026 local authorities will no longer be involved in the delivery of public water supplies and public wastewater treatment. There are options given to staff during the transition period to either transfer to Uisce Éireann or avail of a range of other options including re-assignment within their local authority. The transfer of staff is proving more difficult than was envisaged. These staff joined their respective local authority and for the most part wish to remain in the employment of their council. Some water services staff have particular skills (water works caretakers) that are not found elsewhere in the local authority, some staff enjoy certain terms and conditions in their employment that are not found elsewhere in the council. These are profound issues for the staff involved at a very personal level. In addition, Uisce Éireann has a different operating culture and structure to local authorities.

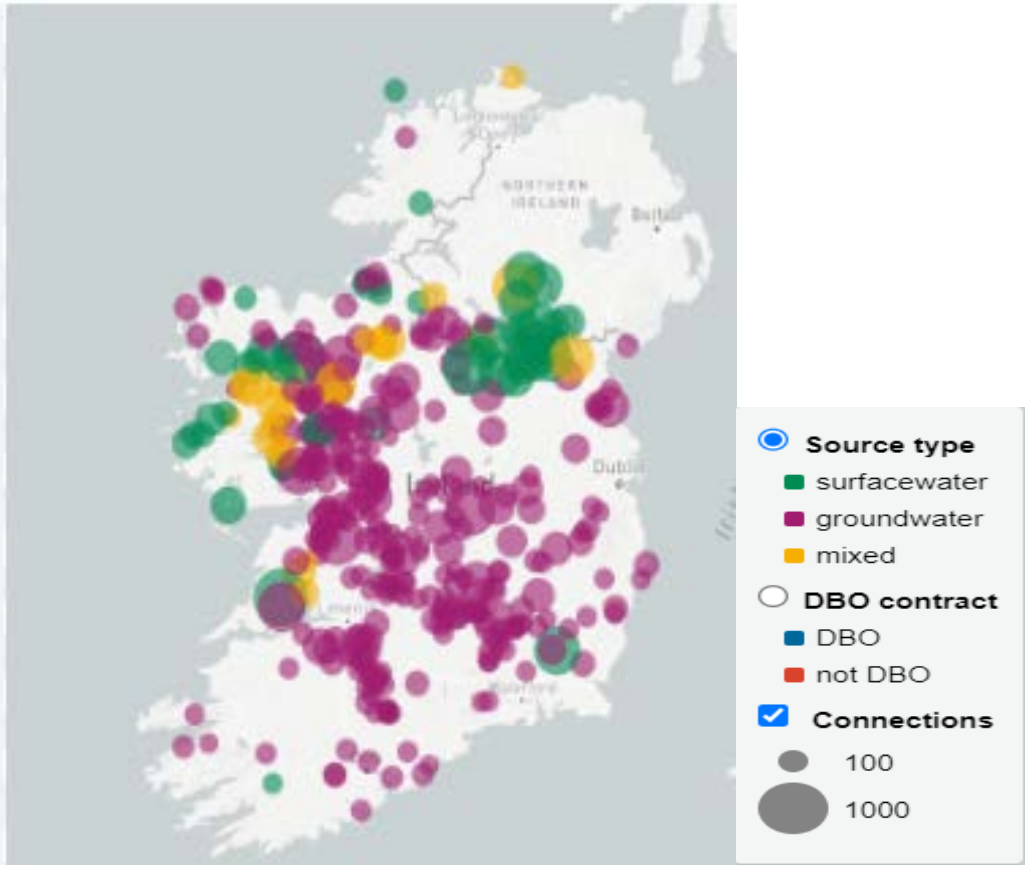
9.4 GROUP WATER SCHEMES

9.4.1 Private Group Water Schemes

Private water supply schemes and, less frequently, wastewater schemes are undertaken and operated by co-operative groups formed primarily in rural communities. Uisce Éireann was not assigned responsibility for connections that do not use a public main for water or wastewater services.

The Group Water Scheme initiative was established in 1962 and was designed to assist co-operative groups in the rural communities to provide water services in areas not served by public water supplies. Projects were grant-aided by central government, which led to the establishment of Group Water Supply Schemes throughout the country, ranging in size from two houses to upwards of 1,000 houses.

Figure 8.3 Distribution Map of Group Water Schemes



Source: National Federation of Group Water Schemes

There are continuing quality problems with privately sourced water supplies. When the government abolished charges for domestic water in public funded schemes in 1997, it created pressure to ensure equal treatment for rural communities, in terms of both quality and cost. The National Federation of Group Water Schemes was established.

A range of measures on water quality and capacity deficiencies in supplies to rural consumers were introduced and led to the Rural Water Programme. Full responsibility for Group Schemes has been devolved to local authorities. Water quality is of ongoing concern for group water schemes.

From the beginning of 2014 Irish Water (now Uisce Éireann) was made responsible for the production, distribution and monitoring of drinking water from over 1,000 public water supplies, serving 82.0% of the population. The remainder of the population is supplied by the group water schemes (6.6%), and small private supplies (0.8%). Private wells (10.6%)

are exempt under the Water Quality Regulations, and responsibility for the water quality rests with the manager/operator of those supplies.

Uisce Éireann is responsible for the monitoring of public water supplies, while local authorities remain responsible for monitoring of group water schemes and regulated small private supplies. The Environmental Protection Agency produces an Annual Report on Drinking Water Quality based on these monitoring results.

The Drinking Water Regulations, introduced in December 2000, brought all group schemes serving 50 persons or more within the remit of the Drinking Water Directive and set a compliance date of December 2003. The Regulations impose more severe penalties than was previously the case for non-compliance.

9.4.2 Septic Tanks (Domestic Wastewater Treatment Systems (DWWTS))

In 2009 the Court of Justice of the EU found that Ireland had failed to fulfil its obligations under the Waste Directive (75/442/EEC) regarding domestic waste waters disposed of through septic tanks and other individual wastewater treatment system (often referred to as Domestic Wastewater Treatment Systems or DWWTS). This ruling had implications for some 440,000 wastewater treatment systems (primarily septic tanks) serving single houses in Ireland. Of these, local authorities inspect some 1,000 tanks per annum which is the minimum target numbers for inspection under an inspection programme of the EPA.

Septic tanks have to be serviced and maintained – both the tank itself and soakage area and should be emptied every 3-5 years depending on usage and ground conditions. Homeowners rely on specialist companies who carry out this work.

The Water Services (Amendment) Act 2012 provided for the introduction of a registration and inspection system for domestic wastewater treatment systems. Owners of domestic wastewater treatment systems are required to register their systems. The Local Government Management Agency (LGMA) has developed a central on-line registration system. The new legislation was framed to minimise the impact on householders, and there is no inspection charge. Under the law, the owners of a premises have a responsibility for ensuring that their treatment system does not cause a risk to human health or the environment or create a nuisance through odours.

The EPA is responsible for the development of a national inspection plan. The EPA uses a risk-based approach to prioritise areas of higher risk to human health and water quality and bases its national inspection plan on these risks. The EPA has a supervisory role in relation to each local authority's performance of its functions. It is responsible for the establishment and maintenance of a register of inspectors which is made available to the local authorities.

The owners of domestic waste-water treatments systems are required to:

- identify where their septic tank is located

- maintain the system so that it operates effectively and so that the system cannot pollute the environment by discharging/ leaking waste (e.g. into the ground or any water source).
- ensure that water run-off (e.g. surface water or roof water) does not enter the system
- ensure the system is de-sludged regularly and in accordance with the tank capacity and the number of people living in the property, as recommended by the system manufacturer.

The EPA has highlighted how DWWTSs are a risk to human health and the environment, noting that half of DWWTSs have been failing inspections, suggesting that many homeowners are not maintaining their septic tanks properly. Both the high failure rate and the lack of consistency in enforcement are clearly causes for concern.

9.5 WATER QUALITY AND NATURAL WATER

Water quality relates to the prevention of pollution and improvement in the quality of natural water courses such as rivers, lakes, beaches and groundwater. While public water supply to premises and public waste water treatment services transferred to Uisce Éireann in 2014, local authorities retained a number of responsibilities concerning water quality, water pollution and the environmental protection of water courses.

9.5.1 The EU Water Framework Directive (WFD)

A landmark development in legislation in this area originates from the EU's Water Framework Directive (WFD) adopted in 2000. The objectives of the Directive were to:

- protect and enhance all waters (surface, ground and coastal waters)
- achieve "good status" for all waters
- manage water bodies based on river basins (or catchments)
- involve the public
- streamline legislation.

The primary focus of the WFD, when first drafted, was to achieve what the Directive called "good" ecological status for all waters by 2015. However, this objective was not achieved by any EU country, and subsequently EU states set their own, more realistic deadlines for achievement of this objective. The Directive:

- Takes a 'source to sea' approach in addressing the full range of the water environment, by addressing ground waters, rivers, lakes, estuaries, transitional waters and coastal waters.
- Reflects on the impact on wetlands from the management of water quality and water flow.
- Sets environmental objectives that take account of pressures upon the aquatic environment, with an emphasis on ecological quality.
- classifies ecological status into five categories (high, good, moderate, poor and bad).
- Promotes sustainable use of water resources.
- Requires a planning, management and reporting system based upon River Basin Districts and International River Basin Districts. These are based upon large river basins or a combination of smaller neighbouring basins and include all rivers, lakes, estuaries, coastal waters and associated ground waters.
- Involves social participation and transparency. EU states are required to involve different stakeholders, local and regional authorities, water users and environmental groups in drafting, discussing and updating River Basin Plans.

The Directive requires that water quality management is based on river basin catchments, which are natural geographical areas that occur in the landscape. This is in contrast to water management systems that use administrative management units, which can have arbitrary boundaries and where water courses such as rivers and lakes run through numerous administrative areas (not just local authority areas or regions but sometimes international boundaries).

Under the legislation, an analysis is carried out of each basin, including the pressures and impacts caused by humans, and an assessment of whether such effects are likely to inhibit the accomplishment of good status. This analysis is the basis for the development of a programme of measures, such as policies and monitoring programmes, that should reduce the risk to water bodies and allow them to attain good status.

WFD implementation requires the development and publication of River Basin Management Plans (RBMP) and Programmes of Measures for each of the River Basin Districts (RBD). The first cycle of river basin management planning began in 2009. Initially, the Island of Ireland was divided into eight river basin districts (five of which were entirely in the Republic, one in Northern Ireland and two which crossed the border and were deemed international). This arrangement was criticised for providing a fragmented approach and lacking consistency. From 2018 a *single national* river basin plan was adopted to improve water quality in 46 different 'catchment management units', which in turn were broken down into over 500 sub-catchments. The plan categorises different water bodies and identifies those that may be at risk of not meeting the environmental objectives of the Directive, as well as which pressures are contributing to this risk, outlining measures that are needed. Regional structures have also been established to give a focus for local and regional implementation of measures by local authorities with the support of both the Local Authority Waters Programme (LAWPRO) and the EPA.

The Groundwater Directive (GWD) and the Environmental Quality Standards Directive (EQSD) are what are sometimes called 'daughter directives' to the WFD. They further clarify the legislative framework of the WFD, providing additional guidance and standards. The Urban Wastewater Treatment Directive (UWWTD) and the Nitrates Directive (ND) also support the objectives of the WFD by addressing key sources of water pollution, such as public water supplies and overspreading of fertilisers and manure from farmland respectively.

Every year the EPA produces a report on water quality in Ireland. This report updates the key indicators of water quality using monitoring data collected. The EPA undertakes a full assessment of the overall quality and ecological status of Ireland's waters every three years. The overall ecological health of a water body is assessed by monitoring a range of biological elements which can tell how good the water quality and habitat condition is. The main issue which impacts on the quality of our waters and their biological health is increased concentrations of nutrients, such as phosphorus and nitrogen. Human activities, such as agriculture, waste water (domestic and urban) and forestry, are the primary cause of nutrient loss to our waters.

When too many nutrients enter water, they cause an overgrowth of plants and algae that can then clog up water courses, use up oxygen and harm aquatic life such as macroinvertebrates and fish in a process known as eutrophication. Elevated phosphorus is a particular concern for the ecological health of our rivers and lakes, while elevated levels of nitrogen are more of a concern for our estuaries and coastal areas. High nitrate concentrations in our drinking water supplies pose a risk to human health. Phosphorus entering our waters is a particular problem associated with poorly treated waste water, industrial discharges and in agricultural areas with poorly draining soils.

Despite the efforts of the EPA, local authorities, farming organisations and government departments and bodies that the issue of water quality in Ireland remains challenging. An example of this which has been debated widely is the application of the Nitrates Directive to Ireland. The Nitrates Directive has the objectives of reducing and preventing water pollution caused by agriculture. Factors that influence nutrient loss to water include weather, soil type, topography and the overall nutrient load.

However, how that load is managed is extremely important to reduce losses to the environment (see below).

9.5.2 Other EU Water Quality Directives

Ireland is obliged to give effect to a number of other important EU Directives on water quality such as the Bathing Water Directive and the Salmonid Rivers Directive. The European Blue Flag Scheme is an annual award operated by An Taisce as part of a Europe-wide award scheme recognising water quality and facilities at a beach or marina.

EU environmental policy has provided the framework for a common approach to water supply protection. Member states are now required to protect water resources used for abstractions and to produce water to a uniform quality standard so as to afford a common level of public health protection.

The Drinking Water Regulations in Ireland, which give effect to EU Directives, place a duty on suppliers to ensure that water is clean and meets minimum standards. These regulations provide the EPA with supervisory powers for public water supplies. The EPA has enforcement powers and can direct Uisce Éireann to improve the management or quality of a public water supply. The local authorities have a similar supervisory role in relation to group water schemes and private supplies.

9.5.3 Water Pollution

A regular issue that can arise in public and media debate is water pollution. Large fish kills on popular fishing rivers as well as eutrophication and algae bloom in lakes receive considerable publicity. The public use of water for recreation purposes Has increased in recent years, and quality bathing waters in particular are important to citizens generally in terms of public health, but also to tourism interests as well.

Significant legislation has been enacted to regulate discharges to waters and to enforce compliance. The principal Acts dealing with water pollution are:

- Local Government (Water Pollution) Act, 1977.
- Local Government Water Pollution (Amendment) Act, 1990.
- European Union (Good Agricultural Practice for the Protection of Waters) Regulations (as amended).

Local Government (Water Pollution) Act, 1977

The objective of the 1977 Act is to control water pollution so that the quality of water resources is maintained to a satisfactory standard. This is to be achieved by:

- Making of a Water Quality Management Plan.
- Licensing of trade and sewage effluent.
- Prohibition of entry of polluting matter to waters.

The main provisions of the 1977 Act were as follows:

(a) Requirement to obtain a licence from a City or County Council for the discharge of trade and/or sewage effluent to waters (Section 4).
(b) Power of the local authority to apply to the District Court for an order directing persons responsible for pollution to mitigate or remedy its effects.
(c) Power of the local authority or any person to apply to the High Court to seek an order in cases of serious pollution.
(d) A local authority may serve a Notice on any person having custody or control of any polluting matter on premises in its functional area specifying measures which should be taken by that person to prevent the entry of polluting matter to waters. It is an offence not to comply with the terms of this Notice (note amendments in the 1990 Act below).
(e) Places an onus on a person causing an accidental discharge or spillage of polluting matter into any waters or sewer to notify the local authority concerned.

It should be noted that many industries previously subject to licences under the 1977 Act are now subject to licensing under the EPA Act 1992, and where industries have obtained an Industrial Emissions licence from the Environmental Protection Agency, they are no longer required to obtain one from the local authority.

The local authority can grant a licence with or without conditions or can refuse to grant a licence. There is provision in the Act for an appeal to An Coimisiún Pleanála against a decision of the local authority to grant or refuse a licence. A decision on a licence application must be made within 2 months.

Local Government (Water Pollution) (Amendment) Act, 1990

The Act amended a number of legislative provisions on water pollution, including:

- An increase in the level of fines.
- An amendment to the "good defence" provision in the 1977 Act to put a greater onus on the person charged to prove that he could not reasonably have foreseen that his act or omission would cause pollution of waters.
- A strengthening of the local authorities' power to serve Notices regulating practices (such as, silage-making and animal slurry spreading) that, in their opinion, pose a risk of water pollution.
- An ability granted to any person to apply to the courts for an Order seeking a remedying of the effects of a polluting incident.
- Polluters are civilly liable for any damage caused by their pollution.
- The review by local authorities of effluent discharge licences at any time where there are reasonable grounds for believing that any of the beneficial uses of water are significantly threatened.
- Powers enabling local authorities to make bye-laws regulating or prohibiting specified agricultural, horticultural or forestry activities.
- Provides for access to the High Court where a serious threat of pollution exists. Previously under the 1977 Act, pollution must have occurred or be occurring in order to apply for a High Court order.

The 1977 and 1990 Acts were subsequently amended by the Waste Management Act, 1996 which provided:

- The Minister may by regulations prohibit or limit or control the production, treatment, use, importation, distribution, storage, transport, sale or supply of any specified substance for the purpose of preventing or limiting water pollution.
- It is a defence for a person charged with committing an offence to prove that he took all reasonable care to prevent the entry to waters by providing, maintaining, using, operating and supervising facilities or by employing practices or methods of operation that were suitable for such prevention and, where appropriate, that the entry to waters to which the charge relates arose from an activity carried on in accordance with an approved nutrient management plan.
- Where a local authority considers it necessary for the purposes of preventing, eliminating or minimising the entry of polluting matter to waters from certain specified agricultural activities a notice may be served requiring the owner/ occupier to prepare a nutrient management plan.

Nitrates Directive and European Union (Good Agricultural Practice for the Protection of Waters) Regulations (as amended)

The Good Agricultural Practice (GAP) Regulations were first introduced in 2006 to transpose the 1991 EU Nitrates Directive into Irish law and have been amended several times since. These regulations are primarily aimed at protecting waters from pollution by nutrients (phosphorus and nitrogen) from agricultural sources, which have been identified as the biggest single pressure on water quality in Ireland. These regulations give legal effect to Ireland's Nitrates Action Programmes, which must be reviewed and updated every four years. The first of the Nitrates Action Programmes was adopted in 2006 and

updated and revised programmes have been adopted at regular intervals since then.

The Nitrates Action Programme must include:

- a limit on the amount of livestock manure applied to the land each year.
- set periods when land spreading is prohibited due to the risk of water pollution.
- defined storage facilities and capacity levels for livestock manure.

9.6 ENVIRONMENTAL CONTROL

The area of environmental control is growing in significance in light of EU Directives and increasing attention to environmental matters at international, national and local level. The influence EU Directives have on local government in the areas of waste and water have been noted above. This section deals with environmental control in relation to air and noise and to Environmental Impact Assessment.

9.6.1 Air Pollution

Poor air quality has a negative effect on public health. There are an estimated 1,300 premature deaths in Ireland per year due to particulate matter in the air. The origins of this particulate matter come mainly from burning solid fuel in homes and from road traffic – these represent the main causes of poor air quality.

Air pollution is defined under section 4 of the Air Pollution Act, 1987 as a "condition of the atmosphere in which a pollutant is present in such quantity as to be liable to:

- be injurious to public health, or
- have a deleterious effect on flora or fauna or damage property, or
- impair or interfere with amenities or with the environment."

The main provisions are as follows:

(a) The Minister may prohibit specified emissions or the production, import or use of a substance (other than a fuel), which could cause air pollution.
(b) Requires the occupiers of all premises, except private dwellings, to use the best practicable means to limit and, if possible, to prevent emissions from the premises.
(c) Gives local authorities power to serve notices (Section 26) requiring the occupier of any premises to take such measures as the local authority considers necessary to prevent or limit air pollution.
(d) Local authorities may take such urgent measures as they consider necessary to prevent or limit air pollution.
(e) Licence must be obtained from the local authority for the operation of certain industrial plants. Note that certain industries are now required to obtain an IPPC licence (see below) under the EPA Act, 1992, which replaces the requirement to obtain a licence under the Air Pollution Act, 1987 from a local authority.
(f) Provides for the making of air-quality plans by a local authority.

Various regulations have been made under the Act, including the Air Quality Standards Regulations, which specify limit values for different pollutants – such as sulphur dioxide, oxides of nitrogen, particulate matter, lead, benzene and carbon monoxide – in ambient air.

The EPA is responsible for issuing greenhouse gas emissions permits and for monitoring, overseeing and verifying emissions from participating companies. Local authorities collect local air quality monitoring information. The EPA publishes annual air quality monitoring reports which indicate that there is good compliance with existing Irish and EU quality standards for air pollutants. EPA studies show that while Ireland's air quality is good compared to other EU countries, there can be poor air quality issues at a local level (primarily due to solid fuel burning of coal, peat and wood and vehicle emissions in urban areas), and where this arises can have negative effects for both public health and the environment.

9.6.2 Noise Pollution

Noise pollution is governed by the Environmental Protection Agency Act, 1992. Under section 108 of the Act, noise pollution or noise nuisance is said to exist "where any noise is so loud, so continuous, so repeated, of such duration or pitch or occurring at such times as to give reasonable cause for annoyance to a person in a premises in a neighbourhood or to a person lawfully using a public place". Students should note that high noise levels are associated with increased health problems and stress levels for those regularly exposed to noise, through for example sleep disturbance, cardiovascular effects, poorer work and school performance, and hearing impairment.

Based on complaints made to them about noise pollution, local authorities or the EPA can require measures to be taken to prevent or limit noise and serve a notice on a person in charge of premises causing the noise. The local authority, the EPA or any person may also complain to the District Court in respect of noise pollution. The Court may order the person or body causing the noise to take measures to reduce the noise to a specified level or take certain measures to prevent or limit noise.

The EU Environmental Noise Directive 2002 (END)

The Directive applies to noise to which the public is exposed, particularly in built-up areas, in public parks or other quiet areas in an agglomeration, in quiet areas in open country, near schools, hospitals and other noise-sensitive buildings and areas. It does not apply to noise from domestic activities, noise created by neighbours, noise at work places or noise inside means of transport or due to military activities in military areas.

The Directive requires EU states to publish every 5 years noise maps and noise management action plans for:

- Urban agglomerations with more than 100,000 inhabitants (Irish cities)
- Major roads (more than 3 million vehicles a year, or more than 8,200 AADT-average annual daily traffic)
- Major railways (more than 30,000 trains a year)
- Major airports (more than 50,000 movements a year, including small aircrafts and helicopters)

The noise maps form the basis for action plans to improve the situation, and prevent or reduce environment noise in these areas. The Directive thus emphasises the integration of noise policy into strategic planning and policies, as well as the dissemination of information on environmental noise exposure to the public. In terms of implementing measures to mitigate noise (such as noise arising from major road networks), the question becomes who pays for these measures. Where national roads are having a significant effect on noise pollution, then it falls to Transport Infrastructure Ireland (TII) to fund mitigation measures to abate the noise pollution.

9.6.3 Environmental Assessment

Environmental Impact Assessment (EIA)

Environmental Impact Assessment (EIA) is the process of assessing the anticipated effects on the environment of a proposed development or project. If the likely effects are unacceptable, design measures or other relevant mitigation measures can be taken to reduce or avoid those effects. The document that is produced based on this process is called an Environmental Impact Assessment Report (EIAR) (previously known as an Environmental Impact Statement (EIS)). EIA requirements in Ireland are incorporated into planning laws and other infrastructural consent systems. An EIAR may have to be submitted as part of the planning control process.

The EU originally agreed a Directive on EIA in 1985. This was replaced by a Directive in 2011 (Directive 2011/92/EU, as amended). Subsequent national legislation (including through the Planning Acts) and regulations were then adopted that implement the Directive in Irish planning and environmental law.

The legislation specifies the types of development for which an application for planning permission must be subject to an EIA. Many projects need to be above a certain size or threshold, and these have been detailed in the schedule to the regulations and subsequent amendments. EIAs can also be sought by planning authorities for proposed projects below the threshold in certain cases, for example if they consider a development is likely to have a significant effect on the environment.

The impacts that must be measured include those on water, air, soil, landscape, noise, human beings, flora and fauna, cultural heritage and combinations of the above. The EIAR must also show the measures that will be undertaken to avoid or mitigate potential negative impacts on the environment and must also give details of alternatives examined by the developer.

Further consideration of this topic is given in the Lesson on Planning.

Strategic Environmental Assessment (SEA)

Strategic Environmental Assessment (SEA) involves assessment of the likely significant environmental effects of plans and programmes prior to their adoption. The SEA Directive (2001/42/EC) was adopted in 2001. It provides for strategic environmental consideration at an early stage in the decision making process on draft plans and programmes and is designed to complement the environmental impact assessment (EIA) process which is based on the assessment of individual projects or developments.

The Directive applies across a wide range of sectors, including agriculture, forestry, fisheries, energy, industry, transport, waste management, water management, telecommunications, tourism and land use planning. The requirement to carry out SEA of plans/ programmes in the sectors mentioned above arises where they "set the framework for future development consent of projects" which are listed in the EIA Directive. Broadly speaking, it is necessary to carry out a *screening procedure* to determine whether a plan/ programme is likely to have significant environmental effects. If there are significant effects, an SEA is needed. SEA is also necessary where plans/ programmes are likely to have a significant effect on a site governed by the Habitats Directive. As well as having implications for local authorities in terms of development plans (and regional spatial economic strategies) it also has implications for plans in areas such as waste management, water quality, as well as national plans in areas such as climate change, transport, agriculture, fisheries, tourism, etc.

Again, the process of environmental assessment (both EIA and SEA) is dealt with in greater detail in the Lesson on Planning.

9.7 THE ENVIRONMENTAL PROTECTION AGENCY

9.7.1 The Role of the EPA

The EPA is an independent public body established under the Environmental Protection Agency Act 1992. The main activities of the EPA include:

(a) Environmental licensing:

- Integrated Pollution Control (IPC) licences (see below).
- Waste licences.
- Emissions trading – permits issued to industry.
- The contained use and deliberate release of Genetically Modified Organisms (GMOs)
- Volatile Organic Compounds (VOC) permits
- Licensing of Wastewater Treatment Facilities

(b) Enforcement of environmental law:

- Enforcing waste and industry licences.
- Supervisory role in respect of the environmental activities of local authorities, for example:
  - management and operation of landfill sites
  - monitoring of bathing waters
  - functions of local authorities in relation to environmental pollution
- Supervisory role in respect of the water supply and waste water treatment activities of Uisce Éireann
- Evaluation of proposals for new processes and infrastructure to ensure that the requirements of Irish and European law are included.
- Enforcement of WEEE Regulations.
- Undertaking prosecutions for significant breaches of environmental legislation

(c) Environmental evidence and guidance:

- Providing information, evidence and supports on climate change.
- Providing information, evidence and supports on water management programmes.
- Working with other public authorities to provide expertise and information on environmental issues generally.
- Environmental research—the EPA's research programme has supported a wide range of projects in areas such as air quality, climate change, water quality, and eutrophication.
- Provision of technical guidance and support.

(d) Monitoring and reporting on the environmental status – air, water, noise, land and soil:

- Monitoring of air pollution and water quality levels.
- Providing sampling and environmental monitoring services to local authorities.
- Providing advice and support on preparing noise maps and noise action plans.

- Monitoring and testing of radiation levels.
- Preparation of reports on the state of the environment and on specific environmental issues.

9.7.2 Office of Environmental Enforcement (OEE)

The Office of Environmental Enforcement (OEE), which was established in 2003 within the Environmental Protection Agency (EPA), has a mandate to deliver enhanced environmental compliance and supervises the environmental activities of local authorities through both guidance and assessing and reporting on the performance of local authorities in this area.

9.7.3 European Commission

Along with the EPA and the OEE, the other key body that supervises and influences the environmental enforcement activities of local authorities and can intervene in this area is the European Commission. European Union (EU) Treaties give the European Commission power to act against member states for breaches of EU environmental law which can lead to financial penalties imposed by the Court of Justice of the European Union. The European Commission has taken legal proceedings against Ireland in relation to a number of cases involving breaches of EU environmental law. The cases include alleged infringements relating to unlawful waste operations, water quality issues, planning decisions, and failing to respect EU directives that protect wild birds and wildlife habitats. It can therefore be seen that, while a lot of legislation has been enacted and a lot of resources committed to the protection of the environment, there are still outstanding issues to be addressed and the work involved needs a cohesive approach from all the stakeholders involved at national, regional and local level.

9.7.4 Integrated Pollution Control (IPC) / Integrated Pollution Prevention and Control (IPPC)

The Environmental Protection Agency Act, 1992 (as amended by the Protection of the Environment Act, 2003) established a revised framework for the control of environmental pollution, and the EPA took over responsibility for the licensing of large/complex industrial, agricultural and other processes with significant pollution potential. The relevant industries and activities are set out in the first schedule to the 1992 Act and include metals, minerals, chemicals, cement, intensive agriculture and waste.

Through the application of an Integrated Pollution Control (IPC) Licensing System, only *one* licence is issued to cover all aspects of air, water, waste and noise emissions. A system of Integrated Pollution Control (IPC) licensing came into effect in 2004. The strengthened provisions introduced under the revisions in the Protection of the Environment Act 2003 includes the following:

- a greater emphasis on pollution prevention in the licensing system and on minimising environmental problems at source

- a change in the technical basis from BATNEEC (Best Available Technology Not Entailing Excessive Costs) to BAT (Best Available Techniques)
- introducing more activities in the licensing system in areas such as intensive agriculture, the treatment and processing of milk, the slaughter of cattle, food production and the production of paper, pulp or board
- a new power for an objector to request the EPA to hold an oral hearing in relation to a licence application
- an increased emphasis on energy efficiency in the carrying on of operations.

The EPA must satisfy itself with regard to the following additional criteria before it can grant a licence:

- the production of waste will be prevented or minimised or if produced will be recovered as far as possible
- energy will be used efficiently
- measures will be taken to prevent accidents
- pollution risks will be avoided in the case of cessation of the activity
- the site of the activity will be returned to a satisfactory state
- the applicant is a fit and proper person (e.g. they have not been convicted for an offence for environmental pollution).

BAT was introduced as a key principle under EU legislation in this area. In the identification of BAT, emphasis is placed on pollution prevention techniques, including cleaner techniques and waste minimisation, rather than end-of-pipe treatment.

9.8 DANGEROUS STRUCTURES AND PLACES/ DERELICT SITES

9.8.1 Dangerous Structures and Places

The Local Government (Sanitary Services) Act, 1964 was enacted following the collapse of a tenement building in Dublin causing several fatalities. The Act deals with dangerous structures and dangerous places.

A dangerous *structure* means any building, wall, or any other kind of structure that in the opinion of the local authority is likely to be dangerous to any person or property. Section 3 empowers the authority to give notice to the owner and occupier of a dangerous structure to carry out such works (including the demolition of the building) as will prevent the structure from being dangerous. A local authority may enter a dangerous structure and carry out the necessary works, if, in its opinion, it is necessary to do so "in the interests of the safety of any person". This section, however, is operated only in cases of serious emergency. There is also a provision allowing the authority to serve a notice requiring the occupier or any person in the dangerous structure to vacate it, if, in its opinion, it is necessary to do so in the interests of the safety of any person.

Section 1 defines a dangerous *place* as "any excavation, quarry, pit, well, reservoir, pond,

stream, dam, bank, dump, shaft or land" the local authority considers to be likely to be dangerous to any person. The local authority may serve notice on owners, specifying the works required to be carried out. There is a provision for appeal to the District Court. Section 2 provides that a local authority may carry out works to prevent the place from being a dangerous place. Section 6 deals with power to acquire land which is or was a dangerous place. Sections 7-11 deal with the compulsory acquisition of such land, similar to provisions in Derelict Sites Act (see below).

The Roads Act 1993 places a statutory obligation on landowners and occupiers to ensure that roadside structures do not present a danger to road users. Examples might include overhanging signs, lights on buildings that dazzle oncoming traffic, billboards that obstruct a view of the road ahead, etc. If a structure is or could become a danger to those using or working on a public road, then the local authority can serve a written notice requiring the removal or modification of the structure or the carrying out of other specified work on it within a specified time.

9.8.2 Derelict Sites and Vacant Sites

The Derelict Sites Act, 1990 (section 3) gives a broad definition of a derelict site, namely.

> Any land ... which detracts or is likely to detract to a material degree from the amenity, character or appearance of land in the neighbourhood of the land in question, because of: ...
>
> - the structures ... are in a ruinous, derelict, or dangerous condition, or
> - the neglected unsightly or objectionable condition of the land or any structures on the land in question, or
> - the presence, deposit, or collection on the land in question of any litter, rubbish, debris or waste.

A general duty is placed under the Act on all owners and occupiers of lands, including local authorities, to ensure that their land is not or does not become a derelict site.

Derelict Sites Register

The Act provides that local authorities must establish and maintain a Derelict Sites Register. Before making an entry in the Register, the local authority must give notice of its intention to the owner or occupier of the land and must consider any written representations made by any owner or occupier within a specified period.

Section 11 Notices

Section 11 of the Act empowers the local authority to serve notices on owners or occupiers of land, specifying measures to be taken to prevent land from becoming or continuing to be a derelict site. However, the person on whom the notice is served must be afforded an opportunity of making representations to the local authority concerning the terms of the

notice. Where a Section 11 Notice is served, the works requested constitute exempted development under the Planning Acts.

Acquisition of Derelict Sites

Section 14 empowers local authorities to acquire by agreement or compulsorily any derelict site in their area. Sections 15 to 19 deal with the compulsory acquisition of derelict sites. This procedure should not be confused with the CPO procedure under the Housing Act, 1966.

Derelict Sites Levy

The Derelict Sites Act 1990 provides for payment of a derelict sites levy on *urban land*. "Urban Land" is defined as a derelict site in an urban area which has been entered in the derelict sites register, but excluding land owned by a local authority in its own area or by a government department. "Urban area" means a city or other borough area, or any town or other area prescribed by the Minister.

Even with the chronic shortage of housing in the country, there are *numerous* properties that have been abandoned by their owners and allowed to become derelict. Local authorities have become more active in recent years in availing of their powers to acquire derelict sites and re-sell them to the market to interested purchasers.

Vacant Sites Register and Vacant Sites Levy

Under the Urban Regeneration and Housing Act 2015 local authorities must maintain a separate vacant site register of lands that are suitable for housing and have been zoned for residential or regeneration purposes but remain vacant for over a year. Other criteria apply to the decision to enter land onto the vacant site register, depending on whether the site is identified as residential land or regeneration land.

The owners of land entered onto the vacant site register can be liable to pay a vacant site levy each year based on the market value of the land until the site is removed from the register. Where owners are liable for the vacant site levy, the 2015 Act provides that they shall not be subject to the payment of the derelict sites levy above. The purpose of the vacant sites levy is to incentivise the development of vacant sites (especially in urban areas and areas of housing demand) and prevent land hoarding.

9.9 THE FIRE SERVICE AND CIVIL DEFENCE

9.9.1 The Fire Service

The fire service is operated at local level, with most local authorities having their own dedicated fire service. In the Dublin area, Dublin City Council provide the fire service on behalf of Fingal, South Dublin and Dún Laoghaire-Rathdown on an agency basis. Similarly, Galway County Council provides shared fire services for both the Galway county and city area. Across the country, arrangements are put in place with neighbouring local authorities for the provision of reciprocal fire cover and support.

The activities carried out under the fire service include:

- the provision of an Emergency Fire Brigade response service, not just in terms of responding to fires but also to road traffic accidents, flooding events and other kinds of environmental incidents such as chemical spills of industrial accidents
- fire prevention initiatives
- enforcement
- fire safety education, including community fire safety
- planning for and responding to major emergencies

- running regional mobilisation and communications

Each local authority is designated as a fire authority and provides fire cover on a full-time or on-call basis (retained brigades) in its area. Most fire services outside the larger urban areas are serviced by retained firefighters, but it is becoming more and more difficult to recruit retained personnel owing to the commitment involved with out of hours, weekends and so on.

Regional Control Centres have been established that handle all fire directed 999 calls and direct these to mobilise firefighters across the network of fire stations as required. The Exchequer provides capital funding towards the cost of providing fire stations, the purchase of fire appliances and emergency and rescue equipment, including communications equipment. All other revenue costs (payroll, fuel and energy, training) are met by the local authorities.

The fire services charges fees for some of the services it provides including Fire Safety Certificate Applications, Cert / Licensing applications heard in court, petroleum licence applications and fire brigade turnout to incidents including chimney fires.

9.9.2 Fire Services Act 1981

This Act was introduced following the Stardust fire disaster that resulted in the loss of 47 lives in north Dublin in 1981. The following are the main provisions of the Fire Services Act (as amended):

- gives local authorities various powers and responsibilities on fire matters
- gives fire authorities important fire-fighting functions and empowers them to assist at emergencies such as accidents, chemical spills, flooding, etc.
- introduces a comprehensive system of fire-safety control of potentially dangerous buildings
- places a general duty on persons having control over certain premises to take reasonable care to guard against the risk of fire
- allows a local authority to serve a fire safety notice under section 20 to an owner or occupier of a building which it considers to constitute a danger and prohibiting the use of the building or part of the building until specified works are carried out
- allows a fire authority to apply to the High Court for an order for the immediate closure of premises in certain circumstances
- gives fire authorities wide powers of inspection and strengthens the ancillary powers of a person in control at a fire or emergency.

It is worth noting that the overall trend in Ireland has seen a reduction in terms of fire deaths per million of population. At 6.9 deaths per million of population, the fire death rate now is almost half what it was a few decades ago.

9.9.3 Fire Service Policy Initiatives

A number of policy documents have been produced by the National Directorate for Fire & Emergency Management. These are intended to set the future direction of fire services in Ireland:

- Keeping Communities Safe – A Framework for Fire Safety in Ireland, adopted in 2013
- CAMP – the Next Generation – Further Development of Fire Services Communication and Information Facilities, also adopted in 2013
- Retained Fire Services in Ireland – A Review of Recruitment and Retention and the Future Sustainability of Service Delivery, adopted in 2022

These frameworks and policy documents suggest the need for an increased emphasis on fire prevention and improved communications systems. However some of the significant changes proposed in these initiatives (such as extending the shared fire service approach to other areas) were not progressed.

9.9.4 Civil Defence

The Air Raid Precautions Act, 1939 initially gave City and County Councils the responsibility for civil defence. Legislation in this area has been consolidated under the Civil Defence Act 2023. Each authority has a Civil Defence Officer (CDO) (either full-time or part-time) and usually an assistant CDO. Civil Defence covers the preparation of local plans, the recruitment of large numbers of voluntary workers and the provision of control centres. Seventy per cent of the expenditure is recouped from the Department of Defence.

Civil Defence volunteers are available and are trained to deal with any major emergency. They have also been mobilised during severe weather events, the search for missing persons, and during the Covid-19 pandemic to support frontline emergency services. Volunteers will often also be present during larger events in the locality (such as concerts, festivals, sporting events, parades etc.) and can assist with welfare and first aid provision.

Under section 8 of the 2023 Act local authorities are required to adopt civil defence plans setting out objectives and arrangements for carrying out their civil defence functions, the recruitment and training of volunteers, and the provision of equipment to civil defence volunteers.

9.9.5 Emergency Management

Arrangements are in place at both national and local level to respond to major emergency or crisis situations at local level, as can arise with severe weather events (becoming more common of course), fires, transport accidents, industrial accidents, major pollution or spillages and other emergency situations. These typically require local authorities which are identified under national emergency management frameworks as 'principal response agencies' to mobilise their resources and work with other 'principal response agencies' at

local level, such as An Garda Síochána and the health services (Health Service Executive). Depending on the nature of the emergency, it might also entail working with other bodies such as providers of key transport, water, communications and energy networks in responding to such events.

Local authorities have adopted local major emergency plans setting out the approach to responding to these kinds of events, responsibilities and protocols and links with national emergency planning frameworks. Students are advised to consult the major emergency plan for their local area.

9.10 MISCELLANEOUS

9.10.1 Burial Grounds

The Public Health (Ireland) Act, 1878 provides for the maintenance, provision and control of burial grounds. Graveyards had been provided on a parish basis in Ireland and very frequently were in the vicinity of, and associated with, the ruins of churches that had existed in previous centuries. Under the above Act, the sanitary authority for each sanitary district became the burial board for each such district. Power was given, in the interests of public health, to restrain the opening of new burial grounds and to order the discontinuing of burials in specified places.

The Local Government (Sanitary Services) Act, 1948 also has a section that deals with the disposal of bodies. Provisions relate to:

- Bodies may only be buried in properly designated burial grounds (an exception to this is that a clergyman may be buried in or adjacent to a church).
- Exhumation of bodies - this previously required the sanction of the Minister for the Environment. However, the local authority (under second Schedule, Local Government Act, 1994) now issues exhumation licences.
- The disposal of bodies other than by burial, e.g. cremation.

9.10.2 Freedom of Access to Information on the Environment

An EU Directive adopted in 2003 provides that EU states must make arrangements for public access to information on the environment. National regulations have been adopted to give effect to this Directive in Ireland. These arrangements are distinct from the more general legislation on Freedom of Information (FOI) applying to local authorities.

The Access to Information on the Environment Regulations set out the procedures for public access to information relating to the environment held by public authorities including local authorities. Subject to certain exceptions, information relating to the environment held by or for a public authority must be made available on request to any person without that person having to state an interest.

Ireland also ratified the UNECE Convention on Access to Information, Public Participation in Decision-making and Access to Justice in Environmental Matters, commonly referred to as the Aarhus Convention in 2012. It lays down a set of basic rules to promote the involvement of citizens in environmental matters and improve enforcement of environmental law. It is legally binding on states that have signed and ratified it.

9.11 CONCLUSION

Issues relating to the environment are complex and inter-related. Local authorities are the primary guardians of the environment in their areas. New initiatives are required to try to find solutions to the waste problem. Difficult decisions have been taken in relation to landfill, incineration, paying for waste and other environmental emissions. Challenges remain in addressing the volume of waste generated. In other areas we face challenges in meeting water and air quality standards to protect what have traditionally been a good water and air quality levels by European standards.

Local authorities themselves are monitored in their environmental functions by both the EPA and the EU and much greater emphasis is paid to openness, transparency and involvement of stakeholders in the decision making process. The legal provisions governing environmental protection have developed over time and are very challenging for local authorities.

Communities do not exist in isolation from their environment. It is also important to acknowledge that environmental protection and enhancement can be costly. The 'polluter pays' principle is a core feature of both EU and Irish environmental policy – this means that those that cause environmental damage must be held liable for that damage. But it also extends to more day-to-day choices that we make as individuals, implying that the environmental consequences of our decisions should be reflected in the costs of different options and choices we avail of. The application of this principle in practice has always been challenging. The real test is whether communities and particular interest groups are prepared to bear the costs involved, either in terms of direct payment for services or in terms of changing behaviour, or in terms of foregoing particular projects/ developments in the overall interests of environmental protection.

Simple policy initiatives such as the levy on plastic bags seem to be acceptable to the Irish public, and other levies may be applied to other items that cause environmental problems. Producer Responsibility Initiatives will also continue to be introduced putting the onus of environmental protection on the producers and suppliers of products rather than the customer.

However, the introduction of charges for services continues to be politically very sensitive, as can be seen from previous controversies around the introduction of domestic water charges. The full application of the polluter pays principle in future will bring many challenges and changes to how local authorities operate and interact with its citizens.

KEY CONCEPTS

- Sustainable Development
- Integrated Pollution Control (IPC)
- Best Available Technology (BAT)
- Polluter Pays Principle
- Waste Hierarchy
- Waste Management Plan
- Regional Waste Management Planning Office
- Waste Enforcement Regional Lead Authorities (WERLA)
- Producer Responsibility Initiatives
- Waste Electrical and Electronic Equipment (WEEE)
- Litter Management Plan
- National Litter Pollution Monitoring System
- Group Water Schemes
- Septic Tanks
- Domestic Wastewater Treatment Systems (DWWTS)
- River Basin Districts
- Local Authority Waters Programme (LAWPRO)
- Environmental Impact Assessment (EIA)
- Strategic Environmental Assessment (SEA)
- Environmental Protection Agency
- Office of Environmental Enforcement (OEE)
- Uisce Éireann
- Dangerous Structure
- Dangerous Building
- Derelict Site
- Vacant Site
- Fire Safety Notice (section 20)
- Emergency Planning
- Emergency Management Plan
- Principal Response Agency
- Civil Defence Plan
- Aarhus Convention

STUDENT ACTIVITIES

1. What is your understanding of the Polluter Pays Principle? To what extent do you think this principle has been reflected in the approach to environmental protection in Ireland?

2. Consider some of the improvements that have been made in Ireland's approach to managing waste over the past number of decades. Equally identify what you

consider to be the key challenges that are outstanding with regard to waste.

3. Consult recent reports and data that might be available to you on litter pollution levels and water quality levels in your area. What are some of the key factors contributing to changes here, and how effective has your local authority been in addressing these?

4. Review the major emergency plan for your local authority area, identifying the key organisations local government must work with in responding to major emergencies. Based on your review of the plan, do you think the local authority is well prepared and equipped to respond to these kinds of events?

5. Examine the achievements of your local authority in respect of environment, waste, litter and fire service performance indicators by reviewing the latest NOAC report on performance indicators. How do these results compare with other similar local authorities?